

Court No. - 29

Case :- WRIT - C No. - 2008 of 2021

Petitioner :- Divya Sahani

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Suresh Chandra,Alok Tripathi

Counsel for Respondent :- C.S.C.

Hon'ble Pankaj Naqvi,J.

Hon'ble Piyush Agrawal,J.

Put up as fresh on **12.2.2021** in order to enable the petitioner to serve a copy of the petition upon Shri Ramendra Pratap Singh, who shall in turn obtain instructions.

Order Date :- 27.1.2021

RS

Court No. - 21

Case :- WRIT - C No. - 2008 of 2021

Petitioner :- Divya Sahani

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Suresh Chandra, Alok Tripathi

Counsel for Respondent :- C.S.C.

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Sanjay Kumar Pachori, J.

Learned counsel for the petitioner is permitted to implead Smt. Sheela Kalra, wife of late Shri Amarnath Kalra, resident of 223/4, Nehru Nagar, Garh Road, Meerut forthwith, as respondent no.3 to the writ petition.

Learned Standing Counsel has accepted notice on behalf of respondent No.1. Shri S.K. Tripathi appears for respondent no.2.

Issue notice to the newly impleaded respondent no.3 by both modes i.e. through dasti as well as RP/AD. Step may be taken within a week. The respondents are granted three weeks' time to file counter affidavit. The petitioner will have one week thereafter to file rejoinder affidavit.

Put up this matter in additional cause list on 17.3.2021.

Order Date :- 12.2.2021

RKP

AFR

Court No. - 29

Writ – C No. 2008 of 2021

Petitioner :- Divya Sahani

Respondents :- State of U.P. and others

Counsel for Petitioners :- Suresh Chandra, Alok Tripathi

Counsel for Respondent :- C.S.C., Shravan Kumar Tripathi

Hon'ble Pankaj Naqvi, J.

Hon'ble Piyush Agrawal, J.

Heard Sri Suresh Chandra, learned counsel for the petitioner, Sri Shravan Kumar Tripathi for respondent no. 2 and the learned standing counsel.

This writ petition has been filed, seeking a writ of mandamus, commanding the respondents to supply an electricity connection in the name of the petitioner at Flat No. MS-4, Second Floor, Pandav Nagar, Meerut.

1. The petitioner claims to have a registered gift deed dated 17.12.2018 in her favour from her mother in respect of property situate at Flat No. MS-4, 2nd Floor, Pandav Nagar, Meerut. The petitioner applied for electricity connection at the above premises after ensuring due compliance and was accordingly granted electricity connection on 24.8.2020. It appears that on an objection raised by her maternal grand mother Sheela Kalra wife of Late Amarnath Kalra that as the aforesaid property is a subject matter of dispute in Civil Suit No. 333/2020 before the Civil Judge (SD), Meerut, respondent no. 2

proceeded to disconnect the power connection on 31.8.2020. The complainant (Sheela Kalra) is reported to be no more.

2. The sole ground for disconnection is the mere pendency of the above suit.

3. Learned counsel for the Power Corporation in order to defend the impugned action took refuge under Clause 4.4 of the Electricity Supply Code, 2005.

4. The U.P. Electricity Supply Code, 2005 is a compilation of certain obligations of the licensee vis-a-vis the consumers and specifies the set of practices to provide efficient, cost-effective and consumer friendly service to the consumers inter alia dealing with procedure for new connection and for enhancement or reduction of load. Chapter IV of the Code relates to procedure for grant of supply, Clause 4.1 enumerates the obligations on the licensees to supply electricity.

5. Clause 4.4 provides the procedure for processing of an application for supply of electricity which is extracted hereinbelow:-

4.4 Processing of Application for Supply:

(a) Application for new connections, in prescribed form (Annexure 4.1) and complete in all respects and accompanied by the prescribed Registration-cum-processing fee, shall be filed in duplicate in the office, specified by the Licensee, along with -attested true copies of the following documents:

(i) Proof of ownership of the premises in the form of registered sale deed or partition deed or succession or heir ship certificate or deed of last will or Proof of

occupancy such as valid power of attorney or latest rent paid receipt or valid lease deed or indemnity form as per Annexure 4.2. Order Copy of appropriate court, in case of litigation regarding ownership of the premises, has to be enclosed.

(ii) Approval / permission / NOC of the local authority, if required under any law / statute.

(iii) In case of a partnership firm, partnership deed.

(iv) In case of a Limited Company, Memorandum, articles of Association, Certificate of incorporation and list of Director's / certified addresses.

(v) Work completion and Test certificate, on the prescribed format (Annexure 4.4), given by the licensed electrical contractor can be submitted later but prior to commencement of supply.

(vi) Owner's consent for getting new supply connection. (Annexure 4.3).

(vii) Connections to Jhuggi / hutments / Patri / Shopkeepers shall be given as temporary connection only and shall be engaged through prepaid meters only and the prospective consumer has to provide Aadhar Card / Pan Card / Ration / Voter ID Card / Driving Licence / Bank Account of Nationalized Bank only (one of these). All the papers issued in regard to this connection will boldly display that the same is a temporary connection and is not a proof of ownership of the said premises.

The conditions mentioned above in sub-clauses (i) to (v) shall not be applicable for the connections released and requested under this sub-clause;

Provided that, these temporary connections shall be up to 2 KW only; it shall be the responsibility of the licensee to ensure electrical safety in such case.

6. Clause 4.4(a)(i) insists on a proof of ownership of the

premises in the form of registered sale deed or partition deed or some document of title or a proof of occupancy so that the applicant can maintain an application for grant of a new connection. The additional requirement under the same clause is that in the event there is a pending dispute with regard to the ownership of the premises in a court of law, a document evidencing such dispute be also furnished. Sub-clause (ii) to sub-clause (vi) also provide certain other conditions which are to be complied with by the applicant but presently we are not concerned with them.

7. We after carefully reading the provisions of Clause – 4.4 are of the firm view that nowhere it prohibits the grant of electricity connection to an applicant merely on the ground that there is a pending dispute in respect of property where the electricity connection is sought to be supplied and rightly so as the supply of electricity to the occupant of a house is fundamentally important to live with dignity under Article 21 of the Constitution else it would be a mere animal existence. If we accept the contention of the Power Corporation, the obvious consequence would be that electricity supply would stand disrupted for the reason that a case relating to property is pending in a court of law. This is neither the legislative intent under the Electricity Act, 2003 nor under the Code as electricity connection does not confer title which fact is also fortified by Note-3 of Annexure 4.1 of the Code which provides that electricity connection shall not be treated as a proof of ownership of the premises. More so it is not the case of Power Corporation that there are any previous outstanding dues in respect of the said premises.

8. We, in view of above, are of the considered view that

the impugned disconnection of electricity supply is de hors the law.

9. The writ petition is **allowed**. A mandamus is issued to the respondent concerned to grant electricity connection to the applicant at his premises as indicated above forthwith, subject to other statutory compliance, if any, in accordance with law.

Order Date:- 17.3.2021

Chandra

(Piyush Agrawal, J) (Pankaj Naqvi, J)